

Set Two Nos. 65-80 and 85. The Motion is properly noticed and unopposed.

Meet and Confer: Pursuant to Ca. Code of Civ. Pro. section 2031.310(b) a motion to compel further responses must be accompanied by a meet and confer declaration. The Declaration of Noriya Bragg establishes compliance with this requirement.

Merits: The scope of discovery is broad. Any matter that is admissible evidence or appears reasonably calculated to lead to the discovery of admissible evidence is relevant and subject to discovery. CCP § 2017.010. Any doubts as to the relevance should generally be resolved in favor of permitting discovery. *Colonial Life & Acc. Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790. A propounding party may move for an order compelling further responses to requests for production if: 1) the response to a request for production is incomplete; 2) a representation of inability to comply is inadequate, incomplete, or evasive; or 3) an objection to the request is without merit or too general. CCP § 2031.310(a). A motion to compel further responses for production must show “good cause” for the request. CCP § 2031.310(b)(1). “Good cause” can be established by showing the request was made in good faith and the documents sought are relevant to the action. *Associated Brewers Distributing Co. v. Superior Court of Los Angeles County* (1967) 65 Cal.2d 583, 588. Once good cause is established, the burden shifts to the opposing party to justify their objection. *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.

Here, Plaintiff seeks to compel further responses to Plaintiff's Requests for Production of Documents, Set Two Nos. 65-80 and 85. The discovery was served on Defendant on January 29, 2026, and responses were due March 3, 2026. On June 5, 2026, Defendant served unverified responses containing objections and did not provide any responsive documents.

Plaintiff has established good cause to compel further production. The documents sought are reasonably calculated to lead to the discovery of admissible evidence. Defendant has not provided any justification for objections to further production. Plaintiff is entitled to an order compelling further responses.

Sanctions: Monetary sanctions are mandatory against anyone who unsuccessfully makes or opposes a motion to compel further response to a demand unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2031.310(h). While Defendant did not provide a substantive opposition, Plaintiffs still had to file the motion in order to obtain discovery. “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” CRC 3.1348(a). Plaintiffs request \$3,600 in monetary sanctions which is comprised of eight attorney hours at \$450 per hour.

A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiffs hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of \$400 per hour. Hours will be reduced by 3, because no opposition was filed and no reply brief was needed. Total sanctions are \$2,250.00.

Plaintiff's Motion to Compel Further Responses to Requests for Production of Documents is **GRANTED**. Sanctions of \$2,250.00 are imposed in favor of Plaintiff Perry against Advanced Crisis Solutions, Inc. No proposed order was lodged as required by Local Rule 5.17(D). Plaintiff is directed to prepare the order.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$52,000.00 USD CASH

CASE NUMBER: 26CV-0209676

Tentative Ruling on Order to Show Cause Re Dismissal: An Order to Show Cause Re: Dismissal ("OSC") issued to Claimant Jared McGinn, in pro per, for failure to timely prosecute. No response to the OSC has been filed. Claimant's Claim Opposing Forfeiture is DISMISSED. This matter is set for review regarding status of default on **Monday, October 5, 2026 at 9:00 a.m. in Department 64**. No appearances are necessary on today's calendar.

WARDLE VS. HILL COUNTRY COMMUNITY CLINIC

CASE NUMBER: 25CV-0207783

Tentative Ruling on Demurrer to Fourth Amended Complaint: Defendant Hill County Community Clinic (HCCC) demurs to Plaintiff Christopher Marvin Blake Wardle's Third Amended Complaint. Specifically, Defendant asserts that the cause of action for: 1) Breach of Public Contract and Retaliation; 2) Breach of Contract and Fiduciary Duty Regarding Grant Management; 3) Breach of Fiduciary Trust (Public); 4) Breach of Implied Contract; 5) Breach of Covenant of Good Faith and Fair Dealing; (17) Breach of Mandatory Duty (Gov. Code 815.6) fail to state facts sufficient to constitute a cause of action pursuant to CCP § 430.10(e). Plaintiff opposes the demurrer.

Merits: A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). The Court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

On May 11, 2026, the Court sustained Defendant's Demurrer as to causes of action 1-5 of the Third Amended Complaint on the grounds that they failed to state sufficient facts to constitute a cause of action. Plaintiff filed a Fourth Amended Complaint ("4AC") alleging 18 causes of action. Defendant argues that Plaintiff lacks standing to assert causes of action 1-5 and 17, which all arise out of HCCC's administration of a grant from California Department of Public Health (CDPH).

Plaintiff is not a party to the grant contract. Plaintiff argues he has standing to enforce the contract as (1) an "Ex-Officio Overseer/Principal Interest" as a supervisor over HCCC's adherence to its charitable mandate; (2) a "Public Trust Heir Interest" allowing him to challenge mismanagement of charitable assets; (3) a "Patient/Consumer Interest" in HCCC's adherence to its public health mandate; (4) a "Statutory/Ministerial Duty Interest" under Government Code § 815.6 as a member of the medically underserved class; and (5) a "Whistleblower/Accountability Interest" under Labor